

No. 5

**A MEASURE passed by the National Assembly of the
Church of England**

To extend the duration of the provisions of the Benefices
(Suspension of Presentation) Measures, 1946 and 1949,
and to consolidate those Measures with amendments
and for purposes connected therewith.

[29th October 1953.]

Bishop enabled
to postpone
filling of vacant
benefice.

1.—(1) In any case where a benefice is vacant the bishop shall, subject to the provisions of this Measure, have power, with the consent in writing of the patron of the benefice (where he is not himself the patron thereof) and of the pastoral committee, and after consultation with the parochial church council of the parish, or each of the parishes concerned, to declare by notice in writing that during such period not exceeding five years as may be specified in the notice (in this Measure referred to by the expression "suspension period") the vacancy in the benefice shall not be filled and during that time the patron shall not be entitled to exercise his right of presentation.

(2) The power conferred by this section may be exercised at any time within a period of twelve months from the occurrence of the vacancy in the benefice or within a period of six months from the passing of this Measure if the benefice be then vacant, and after the lapse of the patron's right of presentation may be exercised without the consent of the patron.

(3) During the currency of any suspension period the bishop may from time to time by a further notice, given with such consents and after such consultation as were required for the original notice, extend the period for further periods not exceeding in the case of any one period five years.

(4) The bishop may determine a suspension period at any time by notice in writing taking effect not less than fourteen days after the date thereof.

(5) The bishop shall cause every notice given by him under this section to be filed forthwith in the diocesan registry, and on the filing of every such notice he shall pay a fee of ten shillings and sixpence to the diocesan registrar.

(6) The bishop shall cause a copy of every notice given by him under this section to be sent forthwith to the patron of the benefice (where he is not himself the patron thereof), to the

churchwardens of the parish, or each of the parishes, concerned and to the sequestrators appointed under the next succeeding section.

Churchwardens receiving a copy of any such notice shall forthwith cause it to be affixed at or near to the principal door of the parish church.

2. In the case of any benefice with respect to which the bishop has exercised the power conferred on him by the foregoing section the bishop shall during the vacancy sequester the profits of the benefice, and in appointing sequestrators shall ensure that one of the persons appointed is specially qualified by training or by experience to discharge efficiently the duties of his office.

Appointment
of
sequestrators.

3. During any such vacancy as aforesaid—

(i) the bishop shall make or direct the sequestrators to make such provision for the performance of the ecclesiastical duties of the benefice as he may from time to time think fit after consultation with the parochial church council of the parish, or each of the parishes, concerned, and, so far as reasonably possible, with the patron of the benefice (where he is not himself the patron thereof);

Performance
of ecclesiastical
duties.

(ii) a curate in charge of the benefice, appointed as such by the bishop, may be required by the bishop to reside in the house of residence of the benefice;

(iii) a curate in charge so appointed, shall for the purposes of the Parochial Church Councils (Powers) Measure, 1921, and the Rules for the Representation of the Laity, and for the purposes of section one of the Ecclesiastical Commissioners (Powers) Measure, 1938, be deemed to be the incumbent or, as the case may be, the minister.

11 & 12 Geo. 5
No. 1.

4.—(1) Sequestrators appointed in pursuance of section two of this Measure, in addition to exercising any powers vested in them by the Benefices (Sequestrations) Measure, 1933, or by the general law relating to sequestrations, may, with the consent of the bishop, exercise in relation to any property of the benefice, any other power which an incumbent would have if the benefice were full, not being a power which by the provisions of any Act or Measure is during a vacancy exercisable by the bishop or the Church Commissioners. They may also, with the consent of the bishop and after consultation with the parochial church council, make such arrangements as they deem

Management
and application
of benefice
property
and income.
23 & 24 Geo. 5
No. 4.

advantageous for the use and occupation of the house of residence of the benefice so long during the suspension period as the curate in charge of the benefice is not required to reside therein.

Nothing in this subsection shall affect the right of a patron of a benefice to exercise while the benefice is vacant any right of patronage vested in the incumbent thereof or affect the operation of the Ecclesiastical Dilapidations Measures, 1923 to 1951.

28 Hen. 8
c. 11.

(2) Notwithstanding anything to the contrary contained in the Tithe Act, 1536, or in any other Act or any Measure, the sequestrators shall, subject to the provisions of the next succeeding sub-section, apply the income of the benefice accruing during any vacancy in respect of which the bishop has exercised the power conferred on him by section one of this Measure—

- (i) first, in payment to the bishop of all expenses incurred by him under this Measure in respect of the benefice and in payment of all expenses properly incurred in the collection of the income of the benefice and in making provision for the performance of the ecclesiastical duties thereof;
- (ii) secondly, in payment of all expenses properly incurred in the exercise of the powers or the performance of the duties by law belonging to sequestrators or conferred or imposed on them by the Benefices (Sequestrations) Measure, 1933, or by this Measure including any remuneration of the sequestrator specially qualified by training or experience which may be approved by the Church Commissioners; and
- (iii) thirdly, in payment of any balance remaining in their hands at the close of the sequestration to the incumbent next succeeding to the benefice, or, where during the vacancy the benefice is united to another benefice by a scheme containing no express provision to the contrary, to the first incumbent of the united benefice:

Provided that—

- (a) if at any time during the course of the sequestration the balance in the hands of the sequestrators exceeds the specified sum they may, with the approval of the bishop, and shall if he with the concurrence of the pastoral committee so directs, pay the excess or some part thereof to the Church Commissioners, who shall after consultation with the bishop and the pastoral committee, apply the same for the improvement of the house of residence or otherwise for the advantage of the benefice or credit the same to the diocesan stipends fund;

- (b) if at the close of the sequestration the balance in the hands of the sequestrators as certified by the bishop or some person duly authorised by him exceeds the specified sum after allowing for all outstanding liabilities including income tax they shall pay the excess to the Church Commissioners who shall apply the same as aforesaid or credit it to the diocesan stipends fund.

(3) The sequestrators may, with the consent of the bishop, apply towards the payment of an assistant curate—

- (a) any sum charged for that purpose on the endowments of the benefice ; and
- (b) so much, if any, of the income of the benefice as the incumbent has customarily allocated to that purpose.

They may also with the like consent pay the whole or any part of any sum so charged as aforesaid either into the diocesan stipends fund of the diocese, or into such other fund, if any, applicable for the cure of souls within the diocese as the bishop, after consultation with the diocesan board of finance, may from time to time authorise.

(4) The sequestrators shall annually, at such date as the bishop may direct, and so soon as may be after the close of the sequestration, render to the bishop duly audited accounts of their receipts and expenditure, and shall furnish such information with respect to the accounts as he may call for.

5.—(1) A suspension period shall not, nor shall any extension thereof, be reckoned for purposes of lapse or for the purpose of computing any period within which any act is required or permitted to be performed by the Benefices (Exercise of Rights of Presentation) Measure, 1931.

Saving in
respect of
lapse, etc.

21 & 22 Geo. 5
No. 3.

(2) This section shall bind the Crown.

6.—(1) Any notification or other communications to be given or made to a patron under this Measure shall be deemed to have been duly given or made if sent by post addressed to the patron at his last known place of abode or business in the United Kingdom, or, if no such place is known, such notification or other communication may be given or made by advertisement in a newspaper circulating in the neighbourhood of the benefice concerned.

Notifications,
etc., to patrons
and parochial
church
councils.

(2) Any notification or other communication to be given or made to a parochial church council under this Measure shall be deemed to have been duly given or made if sent by post addressed to the secretary of the council by his name at his usual

or last-known place of abode, or, if his name or place of abode is unknown, addressed to him by the title of secretary of the council in question at the last-known place of abode of one of the churchwardens of the parish.

(3) In any case where the bishop is required by this Measure to consult with a parochial church council, unless the council shall in writing have requested the bishop to attend a meeting of the council in the parish, such consultation shall be deemed to have duly taken place if the bishop shall have consulted with two members of the parochial church council nominated by the council for the purpose.

Interpretation. 7. In this Measure the following expressions have the meanings hereby respectively assigned to them:

“the bishop,” when used with reference to a benefice, means the bishop for the time being of the diocese in which that benefice is situate (including, during a vacancy in the see, the guardian of the spiritualities thereof);

“the diocesan stipends fund” means the diocesan stipends fund of the diocese concerned established under the Reorganisation Areas Measure, 1944, or the Pastoral Reorganisation Measure, 1949;

“the pastoral committee” means the pastoral committee of the diocese concerned appointed under the Pastoral Reorganisation Measure, 1949.

“the patron” in relation to any benefice means the person or persons for the time being entitled, otherwise than by lapse, to present to that benefice, upon a vacancy, including—

(a) in any case where the right to present is vested in different persons jointly, every person whose concurrence would be required for the exercise of the joint right, and

(b) in any case where the patronage is vested in different persons by way of alternate or successive rights of presentation, every person who is for the time being the person who would be entitled to present on the next, or any subsequent turn;

“presentation” includes collation, nomination and any other manner of filling vacant benefices, and the word “present” shall be construed accordingly;

“the specified sum” means the sum of two hundred pounds or such other sum as may hereafter from time to time be fixed by the Church Assembly by regulation.

8. The Benefices (Suspension of Presentation) Measures, 1946 and 1949, are hereby repealed: Repeals and savings.

Provided that without prejudice to the provisions of section thirty-eight of the Interpretation Act, 1889—

52 & 53 Vict.
c. 63.

(a) any suspension period created or extended under any Measure hereby repealed which is subsisting at the date of the passing of this Measure shall continue as if created or extended under this Measure for the unexpired residue of the period for which the same was created or extended without prejudice to any extension thereof under the provisions of this Measure ;

(b) any direction or requirement made by the bishop under the provisions of any Measure hereby repealed shall continue in force as if made under the provisions of this Measure.

9.—(1) This Measure shall extend to the whole of the Provinces of Canterbury and York, except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands or either of them, as defined in the Channel Islands (Church Legislation) Measure, 1931, in accordance with the procedure set out in the schedule to that Measure. Extent,
duration and
short title.
21 & 22 Geo. 5
No. 4.

(2) The powers conferred by section one of this Measure shall cease on the thirty-first day of December, nineteen hundred and sixty-five and thereafter no new suspension period shall be created nor shall any current suspension period be extended under this Measure :

Provided that nothing in this subsection shall affect the validity of any suspension period already in existence.

(3) This Measure may be cited as the Benefices (Suspension of Presentation) Measure, 1953.

